

**BEFORE THE
OFFICE OF ADMINISTRATIVE HEARINGS
STATE OF CALIFORNIA**

**In the Matter of the Motion for Immediate Reversal of
Suspension of:**

HARRY BRAY, Moving Party,

A Permanent Certificated Employee,

and

**SACRAMENTO CITY UNIFIED SCHOOL DISTRICT, Responding
Party.**

OAH No. 2025070162

**ORDER DENYING MOTION FOR IMMEDIATE REVERSAL OF
SUSPENSION**

Administrative Law Judge Mary Agnes Matyszewski, Office of Administrative Hearings (OAH), State of California, heard oral argument on this matter on August 1, 2025, by videoconference.

Matthew Chevedden, Attorney at Law, Langenkamp, Curtis, Price, Lindstrom & Chevedden, L.L.P., represented moving party, Harry Bray.

Seth Eckstein and Daniel Zerga, Attorneys at Law, Fagen Friedman & Fulfrost, L.L.P., represented Sacramento City Unified School District (district).

The parties' oral arguments were heard, and the matter was submitted on August 1, 2025.

BACKGROUND FACTS

On June 6, 2025, the district filed the Statement of Charges seeking the immediate suspension without pay and dismissal of Mr. Bray, a permanent certificated employee. The district alleged that during the 2023-2024 school year, Mr. Bray, a third grade teacher, allowed at least five female students to sit on his lap during class time and in the presence of other students. The district also alleged he allowed at least two female students to kiss his face. The Statement of Charges alleged that the district inferred a depraved motive from his behaviors. The Statement of Charges referenced events from 2005 as evidence of past similar conduct and directives given to Mr. Bray.

The Statement of Charges contained several grounds for dismissal: immoral conduct, unprofessional conduct, dishonesty, evident unfitness for service, persistent violation of or refusal to obey state school laws or regulations prescribed by the district's governing board, persistent violation of or refusal to obey the school laws of the state or reasonable regulations prescribed for the government of the public schools by the state board or by the governing board of the school district, and willful refusal to perform regular assignments without reasonable cause. (Ed. Code, §§ 44932, subd. (a)(1), (a)(2), (a)(4), (a)(6), & (a)(8), and 44939.) (Of note, the Statement of Charges incorrectly referenced Education Code section 44932, subdivision (a)(2), for the dishonesty charge; the correct subdivision is (a)(4), and listed persistent violation

as the fourth charge but it was the fifth.) The district suspended Mr. Bray without pay pending a hearing before a Commission on Professional Competence.

On July 3, 2025, Mr. Bray filed his Motion for Immediate Reversal of Suspension with OAH, pursuant to Education Code section 44939, subdivision (c)(1). OAH set the matter for oral argument and established a briefing schedule.

MOTION FOR IMMEDIATE REVERSAL OF SUSPENSION AND OPPOSITION

In his motion, Mr. Bray asserts the charges were not sufficiently pled to establish that he engaged in immoral conduct. He contends the charge that students kissed his face is misleading because any student who did so, kissed him on his cheek. Further, the district did not allege any sexual motive for his actions. Mr. Bray argued his actions demonstrated, at most, classroom management issues or his failure to control his students' behaviors, but not immoral conduct because he did not induce or encourage any student to sit on his lap or kiss him. Mr. Bray asserted that the district's reference to events in 2005 were time-barred and inadmissible at hearing. Mr. Bray next asserted that the district failed to plead facts sufficient to show willful refusal to perform regular assignments without reasonable cause.

The district's opposition asserted that it had pled sufficient specific facts to support a finding of immoral conduct, and cited various case law in support of its position. The district asserted Mr. Bray's actions do suggest a sexual motive or moral indifference to students' welfare. The district asserted that its reference to 2005 events was alleged to demonstrate that Mr. Bray was on notice not to engage in this type of behavior, his continuing to do so demonstrated his willful refusal to follow directives, and that evidence could be used for impeachment purposes. The district argued that the factors espoused in *Morrison v. State Board of Education* (1969) 1 Cal.3d 214,

demonstrate Mr. Bray is unfit to teach. The district further asserted it had pled sufficient facts to support a finding that Mr. Bray willfully refused to obey laws and district regulations.

In his reply, Mr. Bray asserted the district now attempts to introduce new facts not pled, as it was now arguing Mr. Bray's conduct suggests a sexual motive or a moral indifference to student welfare, which was not alleged in the Statement of Charges.¹ Mr. Bray also argued that the district's charges of dishonesty are contradicted by its own evidence. Further, he asserted the district misunderstands common behaviors of children who run around, play, and give pecks on the cheek. He again asserted his time-barred claim regarding the 2005 events and argued that evidence cannot be used for impeachment purposes.

ORAL ARGUMENTS

At oral argument, Mr. Bray asserted that it is normal for children to run around, and give pecks on the cheek. There is nothing sexual about what occurred, rather the facts show Mr. Bray had issues with the ability to control students in his classroom. He did try to dissuade the students and never asked any of them to sit on his lap or kiss his cheek. The facts demonstrate a performance issue with classroom management. There was no willful refusal to comply with applicable laws and district policies because he did try to stop the students' behavior.

¹ Given that the district alleged that it inferred a depraved motive from Mr. Bray's actions, this argument was not persuasive.

The district asserted in its oral argument that facts supporting the immoral conduct charges had been fairly well laid out in the Statement of Charges. Respondent's arguments were simply his framing of the narrative, but did not demonstrate that there was not evidence to support the charge. The district further asserted that the length of time these incidents occurred, as well as the number of them, showed this was more than just a performance issue or lack of classroom control. Mr. Bray failed to establish the proper boundaries or act as expected. The district further asserted that the prior incidents supported the allegation of persistent refusal to obey applicable laws and regulations.

IMMORAL CONDUCT ANALYSIS

There is broad discretion in determining what constitutes immoral conduct in the context of teacher disciplinary matters. (*California Teachers Association v. State of California* (1999) 20 Cal.4th 327.)

Immoral conduct has been defined generally as that which is hostile to the welfare of the general public and contrary to good morals. It has not been confined to sexual matters, but includes conduct inconsistent with rectitude, or indicative of corruption, indecency, depravity, dissoluteness; or as wilful, flagrant, or shameless conduct showing moral indifference to the opinions of respectable members of the community, and as an inconsiderate attitude toward good order and the public welfare. (*Board of Ed. of San Francisco Unified School Dist. v. Weiland* (1960) 179 Cal.App.2d 808, 811; *Palo Verde etc. School Dist. v. Hensey* (1970) 9 Cal.App.3d 967, 972.) Immoral conduct is not considered in the abstract but must be considered in the context in which the Legislature considered it, as conduct which is hostile to the welfare of the general public; more specifically, conduct which is hostile to the welfare

of the school community. (*Morrison v. State Board of Education* (1969) 1 Cal.3d 214, 224.)

Immoral conduct alone cannot serve as a basis to terminate a teacher unless the conduct indicates the teacher is also unfit to teach. (*Palo Verde, supra*, at p. 972.) The definition of immoral or unprofessional conduct must be considered in conjunction with the unique position of public school teachers, upon whom are imposed "responsibilities and limitations on freedom of action which do not exist in regard to other callings." (*Board of Trustees v. Stubblefield* (1971) 16 Cal.App.3d 820, 824.)

Immoral conduct also "must be considered in conjunction with the unique position of public school teachers, upon whom are imposed 'responsibilities and limitations on freedom of action which do not exist in regard to other callings.'" (*San Diego Unified School Dist. v. Com. on Prof. Competence* (2011) 194 Cal.App.4th 1454, 1466.) "Thus, the term must be 'considered in the context in which the Legislature considered it, as conduct which is hostile to the welfare of the general public . . . more specifically in this case, conduct which is hostile to the welfare of the school community.'" (*Crawford v. Comm. on Professional Competence* (2020) 53 Cal.App.5th 339, 337, quoting *Morrison, supra*, 1 Cal.3d at p. 224.)

Having considered the pleadings, written submissions, and oral arguments, the district alleged facts which, if true, could constitute immoral conduct and are sufficient to constitute a basis for immediate suspension under Education Code section 44939, subdivision (b).

WILLFUL VIOLATION ANALYSIS

In its brief, the district alleged that Mr. Bray was given directives in the past not to engage in the types of behaviors alleged in the statement of charges, and that his

behavior during the 2023-2024 school year demonstrated his willful refusal to comply with district directives. Mr. Bray argues that evidence from 2005 is time-barred by Education Code section 44944, subdivisions (b)(2)(A). However, that subdivision contains exceptions. Subdivision (b)(2)(A)(i) permits testimony or evidence of allegations of behavior or communication of a sexual nature with the pupil and Education Code section 44944, subdivision (2)(B), allows the introduction of the district's regularly kept records, which would include prior directives in Mr. Bray's file.

Having considered the pleadings, written submissions, and oral arguments, the district alleged facts which, if true, could constitute willful refusal to perform regular assignments without reasonable cause, and are sufficient to constitute a basis for immediate suspension under Education Code section 44939, subdivision (b).

DISHONESTY ARGUMENT

Mr. Bray also addressed the dishonesty charge to the extent the district alleges it evidences immoral conduct. He asserted the Statement of Charges misstates the facts of what occurred when he was interviewed. However, dishonesty is not one of the charges that allows a district to immediately suspend an employee, and that charge was not a basis for the district's suspension. Mr. Bray's arguments about the inaccuracy of the facts alleged to support a dishonesty charge are insufficient to overturn his suspension and should be made at hearing.

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ORDER

Good cause not having been established, the Motion for Immediate Reversal of Suspension is DENIED. The district's immediate suspension of Mr. Bray is SUSTAINED.

DATE: August 1, 2025


Mary Agnes Matyszevski (Page 1, 885, 11/1/2025)

MARY AGNES MATYSZEWSKI

Administrative Law Judge

Office of Administrative Hearings